

REFERENCES & LEGAL SCHOLARSHIP · 9 MAR 2000

Criminal Code — fraud (art. 313-1)

TYPE	DATE
Reference text	9 Mar 2000

SUMMARY SHEET

Article 313-1 of the Criminal Code — fraud

Overview: Reproduction of article 313-1 of the Criminal Code, defining and penalising fraud, gathered in the case file as reference material.

Key points

The document reproduces article 313-1 of the Criminal Code: fraud is defined there as deceiving a person, by using a false name or a false capacity, by abusing a genuine capacity or by employing fraudulent manoeuvres, so as to induce that person to hand over funds, securities or property, to provide a service or to consent to an act. The penalty stated is five years' imprisonment and a fine of 2,500,000 F (wording in force at the time).

Significance

A reference text gathered in support of a reading of the facts; it is not a procedural document but documentary material in the case file.

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Source: bernardcollorafi.org/en/documents/reference-criminal-code-article-313-1-fraud/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.